

Please save this to your own device, folder etc. before amending and returning it to Governance@rbkc.gov.uk

Guidance on submitting notice of forthcoming Key and Executive Decisions (formerly additions to the 'Forward Plan')



Please use this form to notify Governance@rbkc.gov.uk of any notice of forthcoming Key and Executive Decisions

Important Notes:

- You should give at **100 days'** (three to four months') public notice of any Key or Executive Decision before the decision must be made. If this cannot be done, notice must be given for at least 28 calendar days before the decision can be taken (excluding the day the notice is published).
- In most cases, engagement/consultation with service users, local people and ward councillors (as appropriate) will have taken place before the officers concerned start to write any decision report.
- The [Decisions webpage](#) contains details of all Key and Executive Decisions.
- To check whether your item has already been published, search on the [Decisions webpage](#)

Key Decisions are 'any executive decision which is likely:

- (a) to result in significant income or expenditure as follows:
 - contracts, capital expenditure and/or the disposal of property or interests in property (e.g. leases) with a total value of £1.5m or more (excluding VAT);
 - revenue expenditure or income of £500k or more; and
 - the making of individual grants of £50k or more; and/or
- (b) to be significant* in terms of its effects on communities living or working in an area comprising two or more wards.'

** for more on 'significant local impact' see below.*

Executive Decisions are those decisions including contracts that do not fall within the Key Decision definition above, but which involve income or expenditure of £100,000 or more – and these will be taken by the relevant Executive Director.

The interpretation of 'significant local impact'

For a decision to be a 'key decision' by virtue of the 'significant local impact' strand of the Key Decision definition, the effect should be felt across two or more wards, or should satisfy one or more of the following criteria:

- (i) is contentious, for example, a proposal to which a substantial number of local people and/or their local councillors are already known to object; and/or
- (ii) entails demonstrable social, economic, or environmental impact to a substantial number of local people, or significant risks for the Council; and/or

- (iii) entails the closure or significant change to the provision of any council service, school or education facility which impacts principally on one or more vulnerable groups.

Notes:

1. *In normal circumstances 'substantial number' is interpreted as hundreds (rather than tens) of people (across two or more wards).*
2. *Any disputes over the interpretation of these criteria will be determined by the Head of Governance Services and the Monitoring Officer jointly. Where a challenge is made but the decision properly remains an officer decision, the senior officer responsible for the service will make all reasonable efforts to engage with interested councillors and residents before the decision is made.*
3. *Where a decision is only likely to have a significant impact on a small number of people in one ward, the matter will not be a Key Decision, but the decision-maker should ensure those people and their ward councillors are informed of the forthcoming decision in sufficient time to give their views. Decisions on the sale of property interests with a value of £1.5m or more will always be Key Decisions. Those below this amount will not, other than in exceptional circumstances based on the criteria above.*

Proforma for giving notice of a forthcoming Key or Executive Decisions (formerly additions to the 'Forward Plan')



Please complete this form FULLY, overtyping the italic text below, and return it by e-mail to: Governance@rbkc.gov.uk

BASIC DETAILS OF YOUR DECISION

I. Title of decision:

[Insert]

NB there is a 200-character (incl. spaces) limit.

II. Brief Outline of Decision:

This should be 1 or 2 sentences must give a good feel - for Overview and Scrutiny Members, the decision-maker, officers, and the public - of the decision to be taken. These sentences should form the opening sections of your report.

[Insert]

NB If the description is not clear, this form will be returned and it will delay having the proposed decision published on the Council's website.

III. Category of Decision

Key or executive: Choose an item.

If a Key Decision, please select the primary reason: Choose an item.

IV. Details of the Decision-maker: i.e. Leadership Team, named Lead Member or named Executive Director

Lead Member: Choose an item.

Executive Director: Choose an item.

NB for a key decision, please add the relevant executive director.

V. Has the decision-maker (as above) agreed that the notice of the forthcoming decision be published (added to the 'Forward Plan')?

Your response: Choose an item.

NB this is required before Governance Services publishes the notice on the Council's website.

VI. Date by which this decision must be taken and ready for implementation:

[insert date here]

NB

- (i) *If you know which Leadership Team meeting for which you are aiming, please use that date.*
- (ii) *If your date is not at least 29 calendar days from the date you send it back to Governance@rbkc.gov.uk, it will be returned to you.*

VII. Is report public or restricted?

Your response: Choose an item.

Definitions: (Part A), 'Public with private appendix' (Part A/B) or, in exceptional cases only, completely private (Part B).

Please note that information should only be withheld where there is a sound basis for so doing, with reference to Access to Information requirements and Freedom of Information criteria and if the public interest test indicates it should be kept restricted.

VIII. Contact Details

Name: *[please insert]*
email address: *[please insert]*
and phone number: *[please insert]*

*NB this is usually a Head of Service or the specialist writing the report, i.e. someone who can answer questions about the matter before or once the report is written: **These contact details will be published as part of the notice on the Council's website.***

IX. Have both your Director (or Head of Service) and Executive Director agreed for notice of this decision to be published (added to the 'Forward Plan')?

Executive Director: Choose an item. Date consent given Click or tap to enter a date.
How was agreement given Choose an item.

Lead Member: Choose an item. Date consent given Click or tap to enter a date.
How was agreement given Choose an item.

NB If you answer 'no' then this will not be published.

MANDATORY CONSULTATION AND ENGAGEMENT

In most cases, engagement/consultation with service users, local people and ward councillors (as appropriate) should have taken place **before** officers start to write any decision report.

X. Which Ward(s) does this decision affect (please tick all that apply)?

All Wards	☐	Abingdon	☐	Brompton & Hans Town	☐
Campden	☐	Chelsea Riverside	☐	Colville	☐
Courtfield	☐	Dalgarno	☐	Earl's Court	☐
Golborne	☐	Holland	☐	Norland	☐
Notting Dale	☐	Pembridge	☐	Queen's Gate	☐
Redcliffe	☐	Royal Hospital	☐	St Helens	☐
Stanley	☐				

XI. If it affects one or only a few wards, have you notified the relevant Ward Councillors of this decision?

Your response: Choose an item.

*It is important that ward councillors are aware **before** these decisions are made. If you have not notified them, then you really must do this before bringing forward your report.*

***Do not** list Lead Members or officers within the Council.*

XII. Details of external parties you will have consulted/engaged before the report is published:

[insert here]

Please list all Ward Councillors and other stakeholders who you have consulted and/or will be consulting before you bring forward your decision report. There is no need to list internal consultation, e.g. with other departments, Lead Member briefings etc.

If no consultation is proposed or required then please state 'None' - and be prepared to justify this!

XIII. Equalities Impact Assessments (EqIA)

An Equalities Impact Assessment has been completed Choose an item.

All Key and Executive Decisions must include evidence that equality effects have been considered – whether negative or positive.

Please review the HR Hub to see whether you need to complete a full EqIA or screening document: [HR Hub-Equality Impact Assessments](#)

If you require any further assistance please contact: Mandeep Kaur Bains, Corporate EDI Lead, mandeep.kaurbains@rbkc.gov.uk

XIV. Engagement with Scrutiny

The Overview and Scrutiny Committee will meet regularly to decide which upcoming Key Decisions (and, potentially, occasional officer Executive Decisions), merit inclusion in the Scrutiny Forward Plan for the coming months. But officers should not wait for this. Where you are project-planning a decision that is likely to be controversial or of interest to councillors and the public you should discuss with the Scrutiny Team Scrutiny@rbkc.gov.uk on how best to approach this.

(E) Governance@rbkc.gov.uk